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Legal Document

Title: Law on Technical and Vocational Education and Training No. 42/NA, dated 23 December 2013

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Click here to see the measures contained in this document

Contents

Part I: Law on Technical and Vocational Education and Training

Section I: General Provisions

Article 1.Objectives

Article 2.TVET

Article 3.Definition of Terminology

Article 4.State TVET Policies

Article 5.TVET Principles

Article 6.Scope of Application of this Law

Article 7.International Cooperation

Part II: Components of TVET

Section I: TVET System

Article 8.TVET System

Article 9.TVET within the School System

Article 10.NFE TVET

Article 11.TVET Following an Integrated System

Article 12.TVET Formats

Article 13.TVET Structure

Section 2: TVET at Certificate Level

Article 14.Meaning of TVET at Certificate Level

Article 15.Levels of TVET Certificate Curricula

Article 16.Format for TVET Certificates

Article 17.Standards for the Content of TVET Certificates

Article 18.Facilities Teaching TVET Certificates

Section 3: TVET Diplomas

Article 19.Meaning of TVET Diplomas

Article 20.TVET Diploma Curricula

Article 21.Format for TVET Diplomas

Article 22.Standards for the Content of TVET Diplomas

Article 23.Facilities Teaching TVET Diplomas

Section 4: Higher Diplomas

Article 24.Meaning of Higher Diplomas

Article 25.Higher Diploma Curricula

Article 26.Format for TVET Higher Diplomas

Article 27.Standards for the Content of TVET Diplomas

Article 28.Facilities Teaching TVET Diplomas

Section 5: Framework for TVET Qualifications

Article 29.TVET Qualifications

Article 30. Framework for TVET Qualifications

Article 31.Ranking of TVET Qualifications

Part III: TVET Facilities

Section I: Types of TVET Facilities

Article 32.Types of TVET Facilities

Article 33.Training Centers

Article 34.Schools

Article 35.Colleges

Article 36. Institutes

Section 2: Establishment and Dissolution

Article 37. Establishment of TVET Facilities

Article 38. Approval for the Establishment of a TVET Facility

Article 39. Dissolution of TVET Facilities

Part IV: Guaranteeing the Quality of TVET

Section 1: Professional Standards

Article 40. Professional Standards

Article 41. Structure of Technical and Vocational Standards

Article 42. Development of Occupational Standards

Section 2: Curricula

Article 43. Technical and Vocational Curricula

Article 44. Curricular Creation and Development

Article 45. Approval and Termination of Curricula

Section 3: Examinations and Testing

Article 46. Examinations

Article 47. Testing of Occupational Skills

Article 48. Formats and Methods for Testing Occupational Skills

Article 49. Standards for the Testing of Occupational Skills

Article 50. Comparisons and Transfers

Section 4: Issuance of Certificates and Affirmations

Article 51. Certificates

Article 52. Affirmations

Article 53. Issuance of Certificates and Affirmations

Section 5: Occupational Skills Competitions

Article 54. Occupational Skills Competitions

Article 55. Organizing Occupational Skills Competitions

Article 56. Organizations to Lead the Holding of Occupational Skills Competitions

Section 6: Quality Assurance Measures

Article 57. Quality Assurance Measures

Article 58.Quality Assurance Mechanisms

Article 59.Self-Assessment

Article 60.Internal Assessments

Article 61.External Assessments

Part V: TVET Personnel

Section 1: TVET

Article 62.Managers

Article 63.Specialists

Section 2: Technical and Vocational Teachers

Article 64.Technical and Vocational Teachers

Article 65.Types of Technical and Vocational Teachers

Article 66Standards for Technical and Vocational Teachers

Article 67.Technical Positions and Titles for TVET Teachers

Article 68.Rights, Duties, and Obligations of TVET teachers

Article 69.Specific Policies for TVET Teachers

Section 3: Learners

Article 70.TVET Learners

Article 71.Equality among TVET Learners

Article 72.Rights and Obligations of TVET Learners

Article 73.Vocational Training for Students with Problems

Part VI: Obligations for TVET

Article 74.Obligations of Lao Citizens and the Public

Article 75.Obligations of Parents and Guardians

Article 76.Obligations of TVET Facilities

Article 77.Obligations of Labor Units

Part VII: Investment in TVET

Article 78.State Investment

Article 79.Private Investment

Article 80.Funds

Part VIII: Rules

Article 81.General Rules

Article 82.Rules for Principals

Article 83.Rules for Specialists

Article 84.Rules for TVET Teachers

Article 85.Rules for TVET Learners

Part IX: Dispute Resolution

Article 86.Types of Disputes

Article 87.Compromise and Mediation

Article 88.Administrative Resolution

Article 89.Resolution by an OEDM

Article 90.Court Verdict

Part X: The National TVET and Occupational Skills Consultation and Development Council

Article 91.Location, Roles, and Responsibilities

Article 92.The National TVET and Occupational Skills Consultation and Development Council has the following rights and duties

Article 93.Structure

Part XI: Management and Inspection

Section 1: Management of TVET and Occupational Skills

Article 94.Managerial Organizations

Article 95.Rights and Duties of the MoES and MoLSW

Article 96.Rights and Duties of PESSs, DESSs, PLSWDs, and District Labor and Social Welfare Offices

Article 97.Rights and Duties of Offices of Education and Sports and of Labor and Social Welfare

Article 98.Rights and Duties of other Parties

Section 2: Inspection of TVET and Occupational Skills

Article 99.Inspections

Article 100.Inspection Organizations

Article 101.Rights and Duties of Internal Inspection Organizations

Article 102.Rights and Duties of External Inspection Organizations

Article 103.Inspection Formats

Part XII: Policies for Achievers and Penalties for Violators

Article 104. Policies for Achievers

Article 105. Penalties for Violators

Part XIII: Final Provisions

Article 106. Implementation

Article 107. Entry into Force

Lao People's Democratic Republic
Peace Independence Democracy Unity Prosperity

National President

No.: **060/NP**

Vientiane Capital, dated 28 January 2014

Decree
of the National President
of the Lao People's Democratic Republic
on the Promulgation of the Law on Technical and Vocational Education

- Pursuant to Item 1, Article VI of the Constitution of the Lao People's Democratic Republic;
- Pursuant to Resolutions 020/NA, dated 23 December 2013, of the National Assembly; and
- Pursuant to Request 012/SC, dated 23 January 2014, of the National Assembly Standing Committee;

The National President
of the Lao People's Democratic Republic hereby issues the following Decree:

Article 1 The Law on Technical and Vocational Education and Training is hereby promulgated.

Article 2 This Presidential Decree shall enter into force on the date it is signed.

National President of the Lao PDR

*[SEAL OF THE NATIONAL PRESIDENT OF THE
LAO PEOPLE'S DEMOCRATIC REPUBLIC AND SIGNATURE]*

Choummaly Xayasone

**Lao People's Democratic Republic
Peace Independence Democracy Unity Prosperity**

National Assembly

No.: **020/NA**

**Resolutions
of
the National Assembly
of the Lao People's Democratic Republic
on the Agreement to Approve the Law on Technical and Vocational Education and Training**

Pursuant to Item 2, Article 53 of the Constitution and Item 1, Article 3 of the Law on the National Assembly of the Lao People's Democratic Republic on the rights and duties of the National Assembly (NA);

Following the 6th Ordinary Session of the 7th Legislature of the NA, extensive and in-depth studies for the content of the Law on Technical and Vocational Education and Training were carried out during the afternoon session on 23 December 2013.

The meeting agreed as follows:

Article 1 To approve the Law on Technical and Vocational Education and Training by majority vote; and

Article 2 For these Resolutions to enter into force on the date they are signed.

Vientiane Capital, dated 23 December 2013

President of the National Assembly

*[SEAL OF PRESIDENT OF THE NATIONAL ASSEMBLY,
LAO PEOPLE'S DEMOCRATIC REPUBLIC AND SIGNATURE]*

Pany Yathotou

**Lao People's Democratic Republic
Peace Independence Democracy Unity Prosperity**

National Assembly

No.: 42/NA

Vientiane Capital, dated 23 December 2013

Part I

Law on Technical and Vocational Education and Training

Section I

General Provisions

Article 1.Objectives

This Law specifies the principles, regulations, and measures concerning the management, monitoring, and inspection of technical and vocational education and training (TVET) and occupational skills in order to ensure that such work is performed efficiently so that Lao workers may be trained and developed to have knowledge, skills, expertise, occupational skills, vocations, and work ethics, be able to cater to labor market demand, connect sub-regionally, regionally, and internationally, and contribute to the preservation, building up, and development of the nation.

Article 2.TVET

TVET refers to technical and vocational education and training for learners so that they may possess specialized knowledge and skills, find employment, and become workers who hold true to work ethics and possess occupational skills and qualities so that they may provide for the demands of socio-economic development.

Article 3.Definition of Terminology

Terminology to be used in this Law is defined as follows:

1. **National Curricula** shall refer to curricula for which the general aims, content, and activities form a model for technical and vocational institutes to follow so that everyone is studying curricula which is similar and/or equal to those of the region and the world.
2. **Local Curricula** shall refer to curricula used in specific localities in order that they may be consistent and well suited to the true circumstances or needs of the locality in question.
3. **Ordinary Curricula** shall refer to a specific type of curriculum set up for general teaching within the school system.
4. **Ongoing Curricula** shall refer to curricula whereby the learners continue to study and/or upgrade themselves in their technical or vocational field.
5. **Associated Curricula** shall refer to curricula whereby the learners continue to study and/or upgrade themselves in a technical or vocational field associated with the field they initially studied.
6. **Educational Qualifications** shall refer a level of TVET qualification obtained.
7. **Students with Problems** shall refer to students who are disadvantaged, disabled, amputees, and those undergoing reeducation, detention, or imprisonment.
8. **Modules** shall refer to a specific course which forms a component of the entire curriculum.
9. **Credits** shall refer to units showing the volume of study which has been achieved in each subject.
10. **Labor Units** shall refer to units of production, business, and/or services in any socio-economic area.
11. **Occupational Skills** shall refer to skills, expertise, and abilities enabling a person to work.
12. **Occupational Skill Standards** shall refer to the technical or vocational standards which demonstrate levels of expertise, whether or not the person in question is sufficiently skilled to be able to produce work of quality according to procedures, and whether or not they are able to meet the deadlines assigned.
13. **Competencies** shall refer to technical and vocational standards which demonstrate the level of knowledge, Occupational Skills, and the quality of these skills applied in a person's work.
14. **Occupational Standards** shall refer to the standards of a person's Occupational Skills and Competencies.

15. ***The Three Characteristics of National Education*** shall refer to national, scientific and modern, and interpersonal characteristics.
16. ***The Five Pillars of National Education*** shall refer to moral, intellectual, labor, physical, and artistic dimensions.
17. ***Distance Learning*** shall refer to remote self-study using print media.
18. ***Training Centers*** shall refer to research centers, development centers, technical and vocational centers, and testing centers.
19. ***Technical and Vocational Personnel*** shall refer to principals, specialists, and technical and vocational teachers and students.

Article 4.State TVET Policies

The State promotes all Lao citizens to receive TVET and the development of Occupational Skills in a given technical or vocational field based on the true circumstances and conditions of the individual and their family and for support to be given to outstanding students, Students with Problems, and students studying in fields promoted by the State.

The State provides support through the use of policies for credit, exemptions and reductions on customs tariffs and tax in accordance with legal regulations in order that individuals, legal entities and organizations – both State and private sector – may invest in the construction of infrastructure, build technical and vocational schools and centers, and contribute with technical equipment and TVET Personnel to the learning and teaching of TVET in a planned manner in order to train up labor sufficient both in terms of quantity and quality.

Article 5.TVET Principles

TVET must take place in accordance with the following principles:

1. The Three Characteristics and Five Pillars for National Education and an assurance of occupational quality and standards;
2. An assurance that the theoretical study shall match the work in practice, have continuity, and be ongoing so that the students keep studying throughout their whole lives;
3. The application of National and Local Curricula and consistency with the curricula of the sub-region, region, and the world;
4. An assurance that the learners will be able to do their jobs by themselves and that they will balance out with the demands of the domestic and overseas labor markets;
5. Equality without discrimination by gender, age, ethnicity, location, or socio-economic status, the creation of opportunities for Students with Problems to enroll, and an assurance that the TVET shall be consistent with any other goals; and
6. An assurance of correctness and transparency in TVET and Occupational Skills, such as the issuance of certificates or affirmations [exclusively] to students who have completed their curricula in accordance with their field.

Article 6.Scope of Application of this Law

This Law shall be applied to State and private sector organizations providing TVET and Occupational Skills nationwide.

Article 7.International Cooperation

The State promotes communications and cooperation with other countries, the region, and the world with respect to TVET and Occupational Skills through the exchange of lessons learned, training, technical and vocational knowledge upgrades, technology, scientific research, and the securing of funding for the development thereof, the strengthening of the system, and the performance of international agreements and conventions to which the Lao PDR is party.

Part II

Components of TVET

Section I

TVET System

Article 8.TVET System

The TVET system is an ongoing system running alongside the ordinary education system and the non-formal education (NFE) system.

Vocational education is composed of:

- TVET within the school system;
- NFE TVET; and
- TVET following an integrated system.

Article 9.TVET within the School System

TVET within the school system refers to a format of learning and teaching combined with TVET using a regular curriculum at a TVET facility, whereby the learners must have completed primary level education or lower- or higher-secondary level education.

Article 10.NFE TVET

NFE TVET is format for the setting up of learning and teaching and TVET using a short-term curriculum at a TVET facility, community, or labor unit and this includes Distance Learning, which imposes no limitations with regard to the educational level of ordinary learners.

Article 11.TVET Following an Integrated System

TVET following an integrated system is a format for the setting up of learning and teaching with TVET being integrated into the school and NFE systems.

Article 12.TVET Formats

TVET mostly takes place in schools with learning being focused on Competencies and combined learning.

Mostly studying in schools means that the students do their studying in schools but then occasionally go out for work experience with labor units in accordance with the curriculum.

Learning being focused on Competencies means that the students study in accordance with the curriculum and their technical and vocational Competencies are tested in labor units as assigned.

Integrated learning means studying at two locations, as follows:

- At school, they will learn the theory and then try putting into practice at a basic level.
- Then, they will get work experience with a labor unit mainly to gain further practice in real situations.

Article 13.TVET Structure

TVET is made up of the following structure:

1. TVET certificates;
2. TVET diplomas; and
3. Higher TVET diplomas.

Section 2

TVET at Certificate Level

Article 14.Meaning of TVET at Certificate Level

TVET at certificate level refers to TVET from a basic level up to a technical and vocational level whereby the learner has an elementary level of expertise and the practical knowledge, abilities, and Occupational Skills and is qualified to run their own operation or work for a labor unit.

Article 15.Levels of TVET Certificate Curricula

TVET certificate curricula have three levels, as follows:

1. Level 1 TVET certificates are basic TVET curricula for learners who have completed primary school or an equivalent thereof. They last for three to six months based on the specific subject in question in order that the learner may have basic Occupational Skills.
2. Level 2 TVET certificates are curricula to achieve TVET semi-expertise for learners who have completed primary education or an equivalent thereof and last for no less than one year. For learners who have completed a Level 1 certificate, they last for no less than six months.
3. Level 3 TVET certificates are curricula to achieve TVET expertise for learners who have completed lower-secondary school or an equivalent thereof or above. They last for no less than two years based on the specific subject in question. For students who have completed a Level 2 certificate, they shall last for no less than one year.

Article 16.Format for TVET Certificates

TVET Certificates may take place through study and TVET based mainly on the learning taking place at the school in question. Learning is focused on Competencies and combined learning in accordance with the conditions and true abilities of the learner.

Article 17.Standards for the Content of TVET Certificates

The content for TVET certificates must ensure knowledge, abilities, and Occupational Skills in accordance with the Three Characteristics and Five Pillars of National Education.

Article 18. Facilities Teaching TVET Certificates

TVET certificates may be taught and learned and training may take place at TVET centers, schools, colleges, and labor units.

Section 3

TVET Diplomas

Article 19. Meaning of TVET Diplomas

TVET at diploma level means TVET for learners who have completed lower-secondary education or an equivalent thereof or higher or who have completed the Level 3 TVET certificate to provide knowledge, abilities, and expertise in a given TVET field of study.

Article 20. TVET Diploma Curricula

TVET diploma curricula comprise the following:

1. Curricula for learners who have completed the Level 3 TVET certificate or possess technical or vocational expertise and last for no less than one year;
2. Curricula for learners who have completed lower-secondary education or an equivalent thereof and last for no less than three years; and
3. Curricula for learners who have completed upper-secondary education or an equivalent thereof and last for no less than two years.

Article 21. Format for TVET Diplomas

TVET diplomas may take place through study and TVET based mainly on the learning taking place at the school in question. Learning is focused on Competencies and combined learning in accordance with the conditions and true abilities of the learner.

Article 22. Standards for the Content of TVET Diplomas

The content for TVET diplomas must ensure knowledge, technical and vocational abilities, and Occupational Skills in accordance with the Three Characteristics and Five Pillars of National Education. Training methods must be well suited to learners of TVET diplomas.

Article 23. Facilities Teaching TVET Diplomas

TVET diplomas may be taught and learned and training may take place at TVET centers, schools, colleges, and labor units.

Section 4

Higher Diplomas

Article 24. Meaning of Higher Diplomas

TVET at higher diploma level means TVET and technological education for learners who have completed higher-secondary education or an equivalent thereof or higher, who have completed the TVET diploma, or who have completed the Level 3 TVET certificate, or who possess expertise to provide TVET and technological knowledge, expertise, and abilities in a given TVET field of study.

Article 25. Higher Diploma Curricula

Higher diploma curricula comprise the following:

1. Curricula for learners who have completed the Level 3 TVET certificate or possess technical and vocational expertise and last for no less than three years;
2. Curricula for learners who have completed the TVET diploma and last from one to two years on a case-by-case basis; and
3. Curricula for learners who have completed upper-secondary school or an equivalent thereof and last for no less than three years.

Article 26. Format for TVET Higher Diplomas

TVET higher diplomas may take place through study, TVET, and technical and technological training based mainly on the learning taking place at the school in question. Learning is focused on Competencies and combined learning in accordance with the conditions and true abilities of the learner.

Article 27. Standards for the Content of TVET Diplomas

The content for TVET higher certificates must ensure knowledge, technical, technological, and vocational abilities and a knowledge of methodology and society. The students must have individual abilities and Occupational Skills in accordance with the Three Characteristics and Five Pillars of National Education. Training methods must involve student-centered learning and teaching.

Article 28. Facilities Teaching TVET Diplomas

TVET higher diplomas may be taught and learned and training may take place at TVET centers, schools, colleges, institutes, and labor units.

Section 5

Framework for TVET Qualifications

Article 29. TVET Qualifications

TVET qualifications refer to the characteristics and value of the learning of the TVET received in a given field and must be officially verified.

Article 30. Framework for TVET Qualifications

The framework for TVET qualifications refers to the systematic specification and ranking from bottom to top in each technical and vocational branch in order to ensure the levels of knowledge, abilities, Occupational Skills, and qualities in accordance with the standards specified in the National Qualifications Framework (NQF) for use in comparing levels of education.

The NQF is specified in separate regulations.

Article 31. Ranking of TVET Qualifications

There are five levels of TVET qualifications, as follows:

1. Level 1 TVET certificate;
2. Level 2 TVET certificate, demonstrating a certain extent of expertise;
3. Level 3 TVET certificate, demonstrating expertise;
4. TVET diploma; and
5. TVET higher diploma.

Details for the ranking of TVET qualifications are specified in the NQF.

Part III

TVET Facilities

Section I

Types of TVET Facilities

Article 32. Types of TVET Facilities

The types of TVET facilities are as follows:

1. Training centers;
2. Schools;
3. Colleges; and
4. Institutes.

Article 33. Training Centers

A *training center* refers to an educational facility, includes labor units, and provides TVET for training, improving, upgrading learners in a specialized field or given subject, and developing their Occupational Skills in accordance with labor market demand.

Article 34. Schools

A *school* refers to an educational facility where TVET is provided in accordance with the NQF in order to train up the workforce at TVET certificate and diploma level.

Article 35. Colleges

A *college* refers to an educational facility where TVET is provided in accordance with the NQF in order to train up the workforce at TVET certificate, diploma, and higher diploma level.

Article 36. Institutes

An *institute* refers to an educational facility where TVET is provided in accordance with the NQF in order to train up, improve, and upgrade the workforce, including TVET teachers for all levels of education and where research takes place into TVET.

Section 2

Establishment and Dissolution

Article 37. Establishment of TVET Facilities

The establishment of TVET facilities is the responsibility of the State and the public as is consistent with the National Socio-Economic Development Plan (NSED), the Education Sector Development Plan (ESDP), and the Occupational Skills Development Plan [H1] .

The establishment of a TVET facility by a given sector must meet the standards issued by the Ministry of Education and Sports (MoES).

Article 38. Approval for the Establishment of a TVET Facility

The approval for the establishment of each kind of TVET facility must in each case conform to the Law on Education and any other relevant laws.

Article 39. Dissolution of TVET Facilities

A TVET facility shall be dissolved under the following circumstances:

1. It is implementing activities which conflict with the relevant legal regulations;
2. It fails to remedy faults in the implementation of activities which conflict with legal regulations; and/or
3. Dissolution is requested by the individual, legal entity, or organization implementing the TVET.

Education:

4. Its license to implement activities is revoked; and/or
5. Its license to implement activities expires except in the case that permission is granted for its extension.

Continuation:

6. In the event that there is another circumstance specified in legal regulations.

Part IV

Guaranteeing the Quality of TVET

Section 1

Professional Standards

Article 40. Professional Standards

Professional standards refer to occupational benchmarks which specify the technical and vocational knowledge, abilities, and expertise and qualities of labor in order to act as a reference for the creation of curricula, testing, and ensuring the quality of the work involved.

Article 41. Structure of Technical and Vocational Standards

Technical and vocational standards consist of the name of the occupation, the duties and work involved, and the processes, principles, indicators, and conditions for the performance of each kind of work.

Article 42. Development of Occupational Standards

The development of occupational standards is the responsibility of the relevant sector, which must coordinate with the technical and vocational associations [H2], educational institutes, State sector representatives, and educational and labor specialists.

If necessary, an ad hoc committee may be appointed to develop technical and vocational standards as agreed by the TVET Consultation Council [H3] and to develop national Occupational Skills.

Occupational standards must be reviewed and amended for each period in order that they may keep up with socio-economic development, techniques, and technologies.

The consideration and approval of occupational standards are specified in separate regulations.

Section 2

Curricula

Article 43. Technical and Vocational Curricula

Technical and vocational curricula refer to documents which specify the TVET goals, their structure organized into Modules, student-centered learning and teaching methodologies developed by measuring the results and/or testing the true abilities of the learners in order to ensure that their knowledge, Occupational Skills, and qualities are consistent with the demands of socio-economic development and the labor market for each period.

There are two levels of vocational curricula – National Curricula and Local Curricula.

Article 44. Curricular Creation and Development

The relevant sector shall create, develop, and adjust curricula in accordance with the Three Characteristics and Five Pillars of National Education and consistently with the occupational standards, curricular standards, and national socio-economic development. They shall be of an ongoing nature and consist of many levels for which there will be textbooks and teaching manuals and created in such a way that they may connect up with the region and the world.

All levels of technical and vocational curricula must be organized into Modules, for which results shall be awarded as Credits in accordance with the regular, ongoing, and/or continuous curriculum in question by ensuring adherence to State sector regulations as follows:

1. **TVET certificates** must not account for less than 80% of the total study time of the curricula.
2. **TVET diplomas** must not account for less than 70% of the total study time of the curricula.
3. **TVET higher diplomas** must not account for less than 60% of the total study time of the curricula.

The standards for the teaching of each branch of technical and vocational curricula are specified in separate regulations.

Article 45. Approval and Termination of Curricula

The MoES shall approve and promulgate National Curricula.

The Provincial Education and Sports Service (PESS) shall approve and promulgate Local Curricula after it having been agreed to by the MoES.

The education and sports sector approving a curriculum shall terminate that curriculum at each level in the event that the curriculum in question turns out to be inconsistent with the occupational standards, NQF, any legal regulations, or fails to cater to labor market demand and so forth.

Section 3

Examinations and Testing

Article 46. Examinations

Examinations refer to the measuring and assessment of knowledge, abilities, Occupational Skills, and qualities in writing, orally, and in practice in accordance with the chapter being examined.

The formats and methods for examinations are specified in separate regulations.

Article 47. Testing of Occupational Skills

The testing of Occupational Skills refers to the measuring of Occupational Skills in a given technical and vocational branch in order to verify the knowledge, abilities, Occupational Skills, and work ethics of a learner who has graduated from a TVET facility and entered the world of work or of persons with practical experience in performing a particular duty.

Article 48. Formats and Methods for Testing Occupational Skills

The main formats and methods for testing Occupational Skills are as follows:

1. Following the regulations and principles for testing;
2. Testing in accordance with the branch of technical and vocational education needed;
3. Testing of both theory and practice; and
4. Summary, evaluation, and assessment using scores related to the results of the testing.

Article 49. Standards for the Testing of Occupational Skills

It must be ensured that the following standards are met when testing Occupational Skills:

1. The knowledge, abilities, Occupational Skills, and work ethics necessary to perform one's professional duties.
2. The selection and effective utilization of materials;
3. The correct utilization and maintenance of vehicles and parts in the performance of one's duties; and
4. Adherence to procedures, the meeting of deadlines, the ensuring of safety, and environmental preservation.

As for the conditions for those being tested, the testing must be implemented and the test results verified as specified in separate regulations.

Article 50.Comparisons and Transfers

Comparisons and transfers refer to the comparison and acknowledgement of the content of curricula and accumulated experience/qualifications of the technical and vocational learner in order that they may integrate or continue similar or higher level curricula.

Comparisons and transfers may take place from a certificate level to a higher level within the same field at the same educational institute or from one educational institute to another.

Section 4

Issuance of Certificates and Affirmations

Article 51.Certificates

A *certificate* is document of a juristic nature issued for each level as follows:

1. Certificates for basic technical and vocational studies issued to learners graduating from a Level 1 certificate technical and vocational level curriculum;
2. Certificates for semi-expert technical and vocational studies issued to learners graduating from a Level 2 certificate technical and vocational level curriculum;
3. Certificates for expert technical and vocational studies issued to learners graduating from a Level 3 certificate technical and vocational level curriculum;
4. Certificates for diploma level technical and vocational studies issued to learners graduating from a diploma level technical and vocational level curriculum;
5. Certificates for higher diploma level technical and vocational studies issued to learners graduating from a higher diploma level technical and vocational level curriculum; and
6. Certificates for technical and vocational teachers issued to learners graduating from each level of technical and vocational teaching curriculum.

Article 52.Affirmations

An *affirmation* is a document issued to a person who has completed the training and passed the testing for a given vocation in accordance with the curriculum and schedule specified and may be used to accumulate Credits and/or qualifications in order to compare and transfer them onto a technical and vocational curriculum at each level.

Article 53. Issuance of Certificates and Affirmations

The relevant TVET institute shall issue certificates and affirmations. Technical and vocational certificates of diploma level and higher must be registered at the relevant ministry on a case-by-case basis for supervisory purposes. Technical and vocational certificates and affirmations of expertise and below must be registered at the relevant PESS on a case-by-case basis for supervisory purposes.

Section 5

Occupational Skills Competitions

Article 54. Occupational Skills Competitions

Occupational Skills competitions are competitions which use knowledge, abilities, and Occupational Skills for technical and vocational learners and workers to compete with one another in order to promote and upgrade Competencies in Occupational Skills. They can be organized by State sector organizations, jointly between State and private sector organizations, and by private sector organizations.

There are five levels of Occupational Skills competitions – educational institute level, provincial level, national level, regional level, and international level.

Article 55. Organizing Occupational Skills Competitions

Occupational Skills competitions at institute and provincial level may be organized at any time according to circumstances and feasibility.

National Occupational Skills competitions shall take place at least once a year with competitors being selected from internal competitions held at institutes and provincial levels.

Those with the most outstanding skills at national level shall be selected for as competitors for regional and international Occupational Skills competitions.

Article 56. Organizations to Lead the Holding of Occupational Skills Competitions

The Ministry of Labor and Social Welfare (MoLSW) shall be responsible for leading and managing the holding of national, regional, and international level Occupational Skills competitions.

Provincial Labor and Social Welfare Departments (PLSWDs), in coordination with TVET institutes, shall be responsible for leading and managing the holding of Occupational Skills competitions at educational institutes and provincial levels subject to the agreement of the MoLSW.

Section 6

Quality Assurance Measures

Article 57. Quality Assurance Measures

Quality assurance measures refer to methods for the systematic and comprehensive monitoring and assessment of TVET in order that such work may be of the quality required to meet the Occupational Standards specified and be consistent with labor market demand.

Article 58. Quality Assurance Mechanisms

Quality assurance mechanisms refer to various systematically related and associated processes using personnel, resources, rules, measures, and policies for their implementation and implementation mechanisms to ensure our goals are achieved.

The quality assurance mechanisms shall be as follows:

1. Self-assessment;
2. Internal assessment; and
3. External assessment.

Article 59. Self-Assessment

Self-assessment refers to inspections and assessments performed by the TVET facility itself in order to boost, improve, and develop the quality of TVET and shall take place at least once annually.

Self-assessment shall be performed by a specialist committee of the TVET institute and representatives of mass organizations, teachers, and learners.

The methods and procedures for self-assessments are specified in separate regulations.

Article 60. Internal Assessments

Internal assessments refer to inspections and assessments performed by superior levels of the sector to which the TVET facility belongs and take place after self-assessments in order to boost, improve, and develop its quality so that it is consistent with the NSEDP and the Occupational Standards. These must take place at least once annually.

Internal inspections shall be performed by the Inspection Department, the relevant technical department of the sector in question, a committee of the TVET institute for the subject area, and representatives of mass organizations, teachers, and learners.

The methods and procedures for internal assessments are specified in separate regulations.

Article 61. External Assessments

External assessments refer to inspections and assessments of the TVET facility performed by external organizations and take place after internal assessments in order to boost, improve, and develop its quality so that it is consistent with the NSEDP and Occupational Standards of the region

and the world. These shall take place at least once annually. After the external assessments have been completed, the assessment committee must inform the TVET facility in accordance with regulations.

The committee assessing the results of an external assessment shall act as an independent domestic and foreign body.

Part V

TVET Personnel

Section 1

TVET Managers^[H4]

Article 62.Managers

Managers refer to leading personnel in a given TVET stream as demarcated by their managerial hierarchy, as follows:

1. Ministerial level managers guide, lead, monitor, inspect, and facilitate all kinds of issues for TVET macro-administration and macro-management.
2. Provincial and district level managers perform the duties of guiding, leading, monitoring, inspecting, supporting, and facilitating matters for administration, management, and TVET at educational facilities within their respective localities.
3. Grassroots level managers, training centers, schools, colleges, and institutes, perform the duties of managing the learning and teaching and training at local level.

Article 63.Specialists

Specialists refer to TVET researchers, service providers, and implementers and manage/administrate their TVET field and facility.

Section 2

Technical and Vocational Teachers

Article 64.Technical and Vocational Teachers

Technical and vocational teachers refer to the persons providing the teaching, imparting of knowledge, and education and training to the learners at TVET facilities and labor units.

Article 65.Types of Technical and Vocational Teachers

There are the following two types of technical and vocational teachers:

1. Theoretical teachers, who provide classroom and laboratory teaching; and

2. Practical teachers, who provide practical training during work experience, workshops, labor units, and in the field.

Article 66 Standards for Technical and Vocational Teachers

1. Be principled, have a correct political attitude, have a love for the system of a people's democracy, possess certain qualities, be ethical, have strong interpersonal skills, love their career as a teacher, and act as a positive role model for the learners;
2. Possess knowledge and abilities in their specialized field and in teaching and hold the correct certificate(s) and/or affirmation(s);
3. Have abilities in education and training, teaching, measurement and assessment, innovative and creative thinking, self-development, and knowledge of a foreign language.
4. Be in strong health.

Article 67. Technical Positions and Titles for TVET Teachers

TVET teachers at TVET facilities include technical teachers, titled teachers, teachers holding certificates of appreciation, honorary teachers, as follows:

1. The TVET positions include experienced teachers, specialists, experts and senior experts, and assistance teachers and teachers.
2. Titled teachers shall be people's teachers and national teachers.
3. TVET teachers shall receive titles and have the right to request technical and vocational positions as associate professors and professors in accordance with separate regulations.

Vocational teachers shall have the right to request a specialized position or a position of Associate Professor or Professor in accordance with conditions specified in separate regulations.

Article 68. Rights, Duties, and Obligations of TVET teachers

TVET teachers shall have the following rights and duties:

1. To accept further training and upgrade themselves with respect to their duties and specialized subject areas which they teach;
2. To conduction research and participate in scientific research concerning their specialized subject;
3. To provide technical and vocational services to the public in accordance with regulations;
4. To protect their rights, interests, and dignity in accordance with legal regulations;
5. To keep up with news and policies concerning TVET;
6. To teach as specified by the project curricula;
7. To study, train, and develop themselves to keep up with the various changes taking place during each period;
8. To monitor, inspect, assess, measure, and evaluate learning and teaching and training on a regular basis; and
9. To have other rights and duties as specified in legal regulations.

TVET teachers shall have the following obligations:

1. To adhere to the disciplinary regulations of the training center, school, college, or institute;
2. To hold true to and protect the legitimate interests of the learners;
3. To take good care of the equipment, facilities, and environment at the TVET institute;

4. To operate according to a system of teacher rotation and accept assignments issued by their organization; and
5. To perform other duties as specified in legal regulations.

Article 69. Specific Policies for TVET Teachers

The State does its best to upgrade the lives and wellbeing of the workers and their social status and to upgrade them in their specialized subject, knowledge, and abilities, especially teachers working in mountainous, rural, and remote areas, teachers teaching Students with Problems, teachers with exhibiting outstanding performance, and teachers who think innovatively and creatively by providing assistance and facilitating such matters in the performance of their duties as a teacher.

The policies of TVET teachers are detailed in separate regulations.

Section 3

Learners

Article 70. TVET Learners

TVET Learners shall refer to persons studying, being educated, and or training at a TVET institute within the school system or otherwise.

Article 71. Equality among TVET Learners

All TVET learners – without discrimination by gender, age, ethnicity, physical health, economic status, and/or social status – shall enjoy equality in their studies, their education, their training, their research, and their application of technology to develop themselves and serve society.

Article 72. Rights and Obligations of TVET Learners

TVET learners have the following rights:

1. To use the institute, laboratories, educational materials, learning media, and other sources of knowledge in accordance with regulations;
2. To be assessed and evaluated fairly with respect to their qualities and study and examination results;
3. To be exempted from examinations in subjects for which their study results have been outstanding and to enjoy preferential treatment when receiving other policies in accordance with regulations;
4. To receive a training certificate and/or affirmation upon completion of their project curriculum;
5. To propose their ideas and opinions to teachers and other relevant persons responsible for organizing things; and
6. To exercise other rights as specified by legal regulations.

TVET learners have the following obligations:

1. To develop themselves in terms of knowledge, abilities, and qualities consistently with the Three Characteristics and Five Pillars of National Education in order that they may be good citizens of the nation;

2. To participate in learning and teaching activities and training, including activities of public benefit in accordance with the plans of the TVET facility;
3. To respect and adhere to the internal regulations of the TVET facility, the instructions of the teachers, principal, and guardians;
4. To take good care of, maintain the level of the buildings, at the facility, and use equipment, and learning and teaching media and ensure that nothing is broken or mislaid;
5. To cooperate and assist each other in each other's learning, education, research, and training;
6. Refrain from participating in social ills both at the institute itself and in public.
7. Perform other obligations as specified in legal regulations.

Article 73.Vocational Training for Students with Problems

Students with Problems shall receive vocational training which is suitable in order that they may forge a career, find employment, and build an income for themselves and their families.

Part VI

Obligations for TVET

Article 74.Obligations of Lao Citizens and the Public

Lao citizens who have no vocation or job are obligated to enroll in TVET in accordance with their true conditions and abilities in order that they may have a certain amount of knowledge in a technical or vocational branch.

The public has the obligation to contribute to the TVET development in many ways, such as funding, equipment, knowledge, and so forth.

Article 75.Obligations of Parents and Guardians

Parents and guardians have the obligation of create conditions, facilitate matters, provide support, and promote those under their care and/or guardianship to learn, study, and receive TVET.

Article 76.Obligations of TVET Facilities

TVET facilities have the obligation to teach and impart knowledge and abilities to learners and learners who are taking a combined course with the local authorities, parental teaching cooperative, and/or Labor Unit in order that their education, training, and learning may result in them being good citizens with a vocation and who are also able to provide many forms of technical services through the application of multiple methods for the public or communities in accordance with their true circumstances and abilities.

Article 77.Obligations of Labor Units

Labor Units have the obligations to contribute to the learning and teaching, training, building of professional standards and curricula and testing in Occupational Skills, to take on, train up, and facilitate everything for the person on work experience or working with their Labor Unit, coordinate with the TVET facility over the organization of their training in order that techniques, technologies, and funding may be passed on to them to contribute to the development of TVET and Occupational Skills.

Part VII

Investment in TVET

Article 78.State Investment

The State invests in TVET and Occupational Skills – through the provision of budgets for subjects, such as the construction – infrastructure, buildings, facilities, vehicles, equipment, learning and teaching media, and the provision of steadfast training for personnel.

Article 79.Private Investment

Individuals, legal entities, and private organizations – both domestic and overseas – investing in TVET and Occupational Skills by building training centers, schools, colleges, and institutes must operate in accordance with the legal regulations, standards, conditions, and curricula issued by the MoES and consistently with the NSEDP for each period.

Learning, teaching, and training shall be provided to the public using individuals, legal entities, and/or private organizations – domestic or foreign – by investing in TVET and Occupational Skills. Study fees shall be collected in accordance with regulations.

Article 80.Funds

A *TVET funds* refers to the same type of fund as a labor fund as specified in the Law on Labor.

The management and use of this fund has been specified in separate regulations and the Law on the State Budget along with other relevant legal regulations must be conformed to stringently.

Part VIII

Rules

Article 81.General Rules

Individuals, legal entities, and organizations must not behave as follows:

1. Act illegitimately in the establishment of their learning and vocational teaching and training, examinations, and/or testing;
2. Operate in such a way that affects the dignity and/or roles of the personnel and/or the TVET facility;
3. Publish false advertising, exaggerating the true TVET taking place;
4. Provide psychoactive and/or addictive substances, gamble, and/or to operate entertainment venues in near to the TVET facility;
5. Behave in such a way that is contradictory to the fine cultural traditions of the nation;

6. Disseminate obscene materials which conflict with the fine cultural traditions of the nation at the TVET facility; or
7. Exhibit other forms of behavior which are in violation of legal regulations.

Article 82.Rules for Principals

TVET directors must not exhibit the following types of behavior:

1. Create difficulties and/or withhold documents pertaining to TVET;
2. Give, receive, demand, request bribes or perform their duties for personal gain or that of their family;
3. Involve themselves in all types of addictive substances or to gamble at the TVET facility;
4. Set up cliques, factions, divide the solidarity of the locality, or cause trouble at the TVET facility;
or
5. Exhibit other forms of behavior which conflict with legal regulations.

Article 83.Rules for Specialists

Specialists must not exhibit the following types of behavior:

1. Neglect their responsibilities and duties;
2. Perform duties outside their scope of responsibilities;
3. Receive, demand, or request bribes or perform their duties for personal gain or that of their family; or
4. Exhibit other forms of behavior which conflict with legal regulations.

Article 84.Rules for TVET Teachers

TVET teachers must not exhibit the following types of behavior:

1. Stray from the project curricula in their teaching;
2. Be selective or biased over what they choose to teach;
3. Receive, demand, or request bribes or perform their duties for personal gain or that of their family;
4. Speak impolitely or use violence or threats to learners and/or their coworkers;
5. Set up cliques, factions, divide the solidarity of the locality, or cause trouble at the TVET facility;
or
6. Exhibit other forms of behavior which conflict with legal regulations.

Article 85.Rules for TVET Learners

TVET learners must not exhibit the following types of behavior:

1. Act in breach of the disciplinary regulations of the TVET facility and/or of the Labor Unit;
2. Involve themselves in psychoactive substances, obscene materials, addictive substances of all kinds, or gamble at the TVET facility;
3. Pay bribes to the principal, specialists, and/or TVET teachers;
4. Behave rudely or impolitely to the principal, technicians, and/or TVET teachers;
5. Set up cliques to cause trouble at the TVET facility; and/or
6. Exhibit other forms of behavior which conflict with legal regulations.

Part IX

Dispute Resolution

Article 86.Types of Disputes

Dispute may proceed in the following format:

1. Compromise and mediation;
2. Administrative resolution;
3. Resolution at an Office of Economic Dispute Mediation (OEDM); and/or
4. Court verdict.

Article 87.Compromise and Mediation

In the event that a dispute arises over TVET operations, either litigant may negotiate, compromise, and/or mediate.

Article 88.Administrative Resolution

In the event that a dispute arises over TVET, either litigant have the right to request that the relevant division for which they have been granted permission resolve the issue.

Article 89.Resolution by an OEDM

In the event that a dispute arises over TVET, either litigant shall have the right to present the dispute to an OEDM for consideration in accordance with legal regulations.

Article 90.Court Verdict

In the event that arises during the provision of TVET, either litigant shall have the right to request that the People's Court considers the case and comes to a verdict in accordance with legal regulations.

Dispute resolution shall be of an international nature and take place in accordance with international agreements and conventions to which the Lao PDR is party.

Part X

The National TVET and Occupational Skills Consultation and Development Council[H5]

Article 91.Location, Roles, and Responsibilities

The National TVET and Occupational Skills Consultation and Development Council is an organizations which has no standing office/committee and its roles and responsibilities are to conduct research and provide consultations concerning the policies and strategies for the development of TVET and Occupation Skills.

Article 92.The National TVET and Occupational Skills Consultation and Development Council has the following rights and duties:

1. To research, propose opinions for the drafting of policies, strategies, programs, projects, and funds concerning the development of TVET and Occupational Skills for each period, and propose these to the government or relevant sector for consideration on a case-by-case basis;
2. To research, and propose opinions for the drafting of legislation concerning the management of TVET and Occupational Skills;
3. To research and propose opinions for the drafting of job lists and Occupational Skills courses, Occupational Standards, Occupational Skill Standards, and Occupational Skill testing;
4. To research and propose opinions for the drafting of regulations concerning coordination and between the State and private sector over the development of TVET and Occupational Skills;
5. To research, set, and dissolve, its occupational units and Secretariat; and
6. To perform other rights and duties as assigned by superior levels.

Article 93. Structure

The National TVET and Occupational Skills Consultation and Development Council is composed of a chair, a number of vice chairs, committee members, the Occupational Units, and a standing office.

The National TVET and Occupational Skills Consultation and Development Council is structured as follows:

1. The Minister of Education and Sports as chair;
2. The Minister of Labor and Social Welfare as vice chair;
3. The President of the Lao National Council of Commerce and Industry (LNCCI) as vice chair;
4. The Assistant Minister of Education and Sports as ordinary member;
5. The Assistant Minister of Labor and Social Welfare as ordinary member;
6. The Director-Generals of relevant departments as members;
7. The Chairs of relevant TVET associations [H6] as ordinary members;
8. A number of specialized experts as ordinary members; and
9. Representatives from a number of TVET facilities as ordinary members.

The National TVET and Occupational Skills Consultation and Development Council is appointed by the Prime Minister and Standing Committee and there is a standing office at MoES, which is appointed by the Chair of the National TVET and Occupational Skills Consultation and Development Council.

The organization and operations of the National TVET and Occupational Skills Consultation and Development Council are specified in separate regulations.

If necessary, TVET and Occupational Skills Consultation and Development Councils can be set up at local levels subject to the agreement of the locality.

Part XI

Management and Inspection

Section 1

Management of TVET and Occupational Skills

Article 94. Managerial Organizations

The Government manages TVET and Occupational Skills at central level to ensure uniformity nationwide. It assigns this task over to the MoES and MoLSW to take direct responsibility for and coordinate with other relevant ministries, sectors, other organizations, and local authorities for the development of technical and vocational standards, testing and curricula, quality assurance, and so forth.

The Organization to Manage TVET and Occupational Skills comprises:

- The MoES;
- The MoLSW;
- The PESSs;
- The PLSWDs; and
- The District Education and Sports Services; and
- The District Labor and Social Welfare Office.

If necessary, a new village TVET can be set up.

Article 95. Rights and Duties of the MoES and MoLSW

In the management of TVET and Occupational Skills, the MoES and MoLSW have certain rights in accordance with the scope of their responsibilities, as follows:

1. To study the creation of strategic plans and policies, laws, and TVET and Occupational Skills development projects, by coordinating with each other to propose such to the government;
2. To publicize and disseminate the law and provide data and information on TVET, and the labor market nationwide;
3. To guide and monitor the creation and management of a database system for Occupational Skills,
4. To guide and monitor the implementation of strategic plans, policy plans, and legal regulations on TVET, Occupational Skills, and the labor market;
5. To guide and create job lists, Occupational Standards, inspections, and validate occupational skills, to complete in terms of occupational skills, and come up with mechanisms to tackle job placement;
6. To coordinate with Labor Units to take on graduates in their field of work so that they may find employment;
7. To receive and consider resolving proposals concerning TVET and Occupational Skills in accordance with legal regulations;
8. To guide and create measures, evaluations, and approvals for the use of project curricula in all levels of TVET;
9. To specify measures, manage, approve the setting up or dissolution of TVET facilities;
10. To guide the training, improvement, and upgrade of TVET teachers and personnel;
11. To guide planning and organize competitions at national, regional, and international level;

12. To coordinate and cooperate with other countries and international organizations over TVET and Occupational Skills;
13. To summarize and report on the implementation of TVET and Occupational Skills on a regular basis; and
14. To exercise other rights and duties as specified in legal regulations.

Article 96. Rights and Duties of PESSs, DESSs, PLSWDs, and District Labor and Social Welfare Offices

In the management of TVET and Occupational Skills, the PESSs and PLSWDs are in charge of writing their plans, programs, and detailed projects within the scope of their responsibilities, as follows:

1. To adopt and disseminate the law and provide information concerning TVET and Occupational Skills within their respective provinces;
2. To publicize, disseminate, and provide data and information concerning TVET and Occupational Skills within their respective provinces;
3. To build and manage the database for TVET, Occupational Skills, and the labor market within their respective provinces;
4. To guide, monitor, and support the implementation of strategic plans, policies, and legal regulations concerning TVET and Occupational Skills;
5. To study and create a list of occupations, occupational skill standards, for testing standards and the verification of Occupational Skills and Occupation skill competitions, and competitions concerning Occupational Skills and measures for job placement;
6. To coordinate with Labor Units concerning TVET and Occupational Skills within their province in accordance with legal regulations;
7. To receive and consider resolving proposals concerning TVET and Occupational Skills in their respective provinces in accordance with regulations;
8. To guide, monitor, and support the training, improvement, and upgrading of vocational teachers, and TVET personnel at local level;
9. To guide, monitor, and support the creation, improvement, and upgrading of vocational teachers and TVET personnel.
10. To create plans and implement competitions concerning Occupational Skills at provincial and TVET facility levels;
11. To coordinate and cooperate with other countries and international organizations concerning TVET and Occupational Skills as assigned;
12. To summarize and report on the implementation of TVET and Occupational Skills to their respective ministries and Provincial Administration Offices on a regular basis; and
13. To perform other rights and duties as specified in legal regulations.

Article 97. Rights and Duties of Offices of Education and Sports and of Labor and Social Welfare

In managing the work of TVET and Occupational Skills, DESSs and District Labor and Social Welfare Offices have rights and duties within their scope of responsibilities, as follows:

1. To implement strategic plans, policies, laws, TVET and Occupational Skills development projects within their districts;

2. To disseminate the law and provide information and data concerning TVET, Occupational Skills, and the labor market within their respective localities;
3. To build and manage database systems concerning TVET, Occupational Skills, and the labor market within their localities;
4. To implement lists of Occupational Skills and measures for job placement;
5. To coordinate with Labor Units in taking on TVET and Occupational Skills graduates so that they may find employment;
6. To receive and consider proposals concerning TVET and Occupational Skills within their district in accordance with regulations
7. To propose the training, improvement, and upgrading of TVET personnel within their locality;
8. To summarize and report on the implementation of TVET and Occupational Skills to their respective provincial departments and Provincial Administration Offices on a regular basis; and
9. To exercise other rights and duties as specified in legal regulations.

Article 98. Rights and Duties of other Parties

Other sectors and organizations, including the relevant local governance organizations, shall have the rights and duties to coordinate with the MoES and MoLSW for the development of TVET and Occupational Skills, such as Occupational Standards, curricular standards, testing, quality assurance, and technical and Occupational Skills in their branch of study with respect to their respective roles and responsibilities.

Section 2

Inspection of TVET and Occupational Skills

Article 99. Inspections

An *inspection* shall refer to an assessment of TVET and Occupational skills to ensure they are steadfast, systematic, and transparent to ensure that such work is consistent with the policies planning, programs, projects, regulations, and quality standards for TVET and Occupational Skills to boost expansion, to limit social ills and legal violations, and to summarize, assess, and evaluate.

Article 100. Inspection Organizations

The TVET and Occupational Skills inspection organization shall comprise both internal and external inspection organizations.

An *internal inspection organization* shall refer to a sole body to manage TVET and Occupational Skills as specified in Article 94 of this Law.

An *external inspection organization* shall exist outside the organizational structure of the education and sports and the labor and social welfare sectors. It shall be composed of members of the NA, the Government Inspection and Anti-Corruption Authority (GIACA), the National Inspection Authority, the Lao Front for National Construction (LFNC), mass organizations, the mass media, and the public themselves.

Article 101. Rights and Duties of Internal Inspection Organizations

Internal inspection organizations have the following rights and duties:

1. To inspect the implementation of resolutions, orders, and legal regulations concerning TVET and Occupational Skills
2. To inspect the current targets, plans, programs, projects, curricular content and teaching methods, examination regulations, Occupation Skills testing regulations, and the issuance of certificates and affirmations;
3. To inspect the quality and administration of a TVET facility and inspect the Occupational Skills;
4. To inspect and resolve proposals from the public concerning TVET and Occupational Skills;
5. To propose the suspension of a TVET facility in the event that it is acting in breach of legal regulations;
6. To combat and eliminate corruption in the area of TVET and Occupational Skills;
7. To propose to the relevant sectors that they rectify inspection results in accordance with regulations; and
8. To perform other rights and duties as specified in legal regulations.

Article 102.Rights and Duties of External Inspection Organizations

External Inspection Organizations shall have the same rights and duties as those specified in the Law on National Assembly Oversight, the Anti-Corruption Law, the Law on State Audits, the Law on Audit, and other relevant laws.

Article 103.Inspection Formats

The inspection of TVET and Occupational Skills shall take place in the following three formats:

1. The inspection may be a regular inspection, meaning that it takes place in accordance with a regular plan and has a definite specified time;
2. The inspection may be an inspection with advance notice, meaning that despite not being part of a plan, it is deemed necessary due to a matter which should be inspected with advance notice given;
3. The inspection may be sudden and ad hoc without the inspected being given any advance notice.

In these inspections, the officials shall inspect that all duties are taking place correctly in strict accordance with legal regulations.

Part XII

Policies for Achievers and Penalties for Violators

Article 104.Policies for Achievers

Individuals, legal entities, and/or organizations found to be implementing this Law outstandingly by, for example ensuring that their management and/or TVET is in line with its objectives and goals for effective Occupational Skill development, they shall receive appraisals and/or benefit from policies in accordance with regulations.

Article 105.Penalties for Violators

Individuals, legal entities, and/or organizations found to be implementing this Law shall receive a warning, reeducation, disciplinary measures, a fine, civil liability, and/or criminal liability depending on the severity of the case.

Part XIII

Final Provisions

Article 106.Implementation

The government of the Lao People's Democratic Republic shall be responsible for the implementation of this law.

Article 107.Entry into Force

This Law shall enter into force on the date it is signed by the President of the Lao People's Democratic Republic a decree for its promulgation shall be issued by an official government letter fifteen days later.

Any specifications or provisions which conflict with this law are hereby repealed.

National President

*[SEAL OF THE PRESIDENT OF THE LAO
PEOPLE'S DEMOCRATIC REPUBLIC AND SIGNATURE]*

Pany Yathotou

[H1]To Client: I was unable to find a direct English language reference for this so have translated word-for-word. Please check.

[H2]To Client: I was unsure as to whether this referred to something specific or TVET societies and associations in general. Please check.

[H3]To Client: I was unable to find a direct English language reference for this so have translated word-for-word. Please check.

[H4]To Client: This word can also translate as 'principals' and 'administrators' so I have had to take a guess at the most likely meaning.

[H5]To Client: I was unable to find an English language reference for this so have translated word-for-word. I shall continue to do so for future instances thereof.

[H6]To Client: I was unable to find references for any of these.

Download English:Law on Technical and Vocational Education and Training No. 42/NA, dated 23 December 2013 (/images/download/Announcement_2017082115084545.pdf)

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List Measures Related to Legal Documents

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